

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALFRED STERN III,

Petitioner

VS.

LEILA DUARTE,

Respondent

) Case Number: FPT-26-378850

) Hearing Date: June 18, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Alfred Stern III (Father) and Respondent Leila Duarte (Mother). The minor child subject to this proceeding is Sirena Lakshmi Cheza Renee Stern (05/24/25).
- 2) On February 25, 2026, Father filed a Request for Order seeking initial child custody and visitation (Parenting Time) orders. In particular, Father is seeking orders for joint legal and joint physical custody. Father did not indicate what sort of orders he was seeking relative to parenting time.
- 3) On May 4, 2026, Mother filed a Response to the underlying UPA Petition, however, she has not filed a Responsive Declaration to Father's RFO. Within her UPA Response, she requests sole legal and sole physical custody. Mother requests that Father have visitation with the minor child every weekend. Mother alleges domestic violence and sexual assault by Father. Mother states she does not believe Father is a danger to the child.

1 4) The Request for Order to Change Visitation was originally set for “readiness” on May 5, 2026.

2 On May 5, 2026, the Court referred the parties to FCS Mediation to occur on June 9, 2026 and for
3 a return hearing to occur on June 18, 2026.

4 5) On June 8, 2026, the Court received a Tier II report indicating there is an open CPS investigation
5 against Mother. While the allegations will not be repeated in this section, the Court will discuss
6 the allegations with the parties during the hearing

7 **B. Findings and Order**

8 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
9 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
10 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
11 child is the United States.

12 2) **The parties are ordered to appear.**
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